

The complaint

Mr V complains Accredited Insurance (Europe) Ltd (Accredited) unfairly declined to settle his claim on his home insurance policy.

Accredited are the underwriters of this policy i.e. the insurer. Part of this complaint concerns the actions of the intermediary. As Accredited have accepted it is accountable for the actions of the intermediary, in my decision, any reference to Accredited includes the actions of the intermediary.

There are several parties and representatives of Accredited involved throughout the complaint but for the purposes of this complaint I'm only going to refer to Accredited.

What happened

Mr V he found water coming through the roof in his house causing damage to a ceiling. He made a claim on his home buildings insurance policy. He said it was storm damage.

Accredited said there were no storm conditions in the days prior to the date Mr V said the damage had occurred. It sent its approved surveyor to look at the damage and this found there to be a number of damaged roof tiles. The survey recorded the broken tiles had been previously repaired, and these repairs had now failed allowing rainwater to enter the roof void. It said this was wear and tear and poor workmanship.

Accredited declined Mr V's claim as it was not covered for either storm damage or wear and tear under the terms of his policy.

Mr V then said the damage had been caused by the impact of cricket balls hitting the roof. Accredited said there was no evidence to support this. It said if a cricket ball had caused the damage, water would have been leaking through a long time prior to the incident date. It said this would also be excluded as his policy did not cover any damage that had occurred gradually.

Because Mr V was not happy with Accredited, he brought the complaint to our service.

Our investigator did not uphold the complaint. They looked into the case and said they were satisfied Accredited had been fair to decline the claim under the storm peril as there wasn't a storm, and poor workmanship was also not covered under the policy. They said there was no evidence to show a cricket ball had caused the damage.

As Mr V is unhappy with our investigator's view the complaint has been brought to me for a final decision to be made.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Mr V noticed the water coming through the ceiling of his house in November 2023. He said he chose the category of storm damage when he made the claim on his home insurance policy because he was not an expert in roof damage.

Our role isn't to assess the claim as we're not claim assessors or experts in roofs. Our role is to look to see if Accredited fairly declined to settle the claim. When we consider complaints about claims as a result of storm damage we approach them in a similar manner. There are three conditions that need to be met before we can say that a business should deal with a claim for storm damage. Those conditions are:

- 1) Was there a storm?
- 2) Is the damage typical of that caused by a storm?
- 3) Were the storm conditions the main cause of the damage?

In this case I saw both Accredited's evidence and the evidence obtained by our investigator confirmed there were no storm conditions in the weeks prior to the damage being reported. As the answer to this first question is *no*, the claim would not be successful as storm damage. Therefore, I accept Mr V's storm claim was declined fairly by Accredited.

I do understand because Mr V was not sure what had caused the damage to his roof, he thought a storm was the most likely cause, which is why he initially reported the cause was storm damage. I also understand after he saw the images captured by the surveyor and the roofer he accepted it was not storm damage.

I reviewed the report from the approved surveyor who had attended Mr V's property to assess the damage. I also reviewed images of the roof. The report concluded the broken tiles to the roof had been previously repaired and these repairs had failed allowing the rainwater to enter the house. It said the tiles should have been replaced.

I looked at the terms of Mr V's home insurance policy. Included in the general exclusions section it says;

"The following exclusions apply to all sections of this policy.

12. Any gradual or maintenance -related loss or damage

Loss or damage as a result of gradual causes including

- *wear and tear;*
- *gradual deterioration (whether you were aware of it or not;"*

Because the expert's evidence confirms the roof had pre-existing issues and rainwater came through broken tiles, I accept that Accredited fairly relied on the wear and tear exclusion in Mr V's policy to decline his claim.

When his claim was declined Mr V discussed it further with Accredited. He said after looking at the pictures of his roof the damage clearly came from accidental damage caused by impact of a small object. He said the cause was accidental impact damage made by cricket balls coming over from the cricket club opposite. He said the damage to the roof had happened over time and caused the ceiling to collapse. And he said he had reported it as soon as he became aware of it.

I have considered this, however there is no evidence to support this explanation.

Even if it were proven the damage to the roof was caused accidentally by cricket balls hitting the roof and the damage happened over time, Accredited would not be able to consider this claim because as detailed above, *gradual causes* are not covered under the terms of Mr V's policy. I also saw accidental damage cover was not included in his policy.

An insurance policy does not cover for every possible eventuality, and for Mr V to make a claim on his home insurance policy the damage reported must have been caused by an insured peril.

Although I know Mr V will be disappointed, I don't uphold his complaint and do not require Accredited to do anything further in this case.

My final decision

For the reasons I have given I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr V to accept or reject my decision before 4 July 2024.

Sally-Ann Harding
Ombudsman